

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 02/28/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01081
CASE NAME: WINEHAVEN LEGACY LLC VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's ("Defendant") Motion for Judgment on the Pleadings ("MJOP"). The MJOP relates to Plaintiff's First Amended Complaint ("FAC") for various contract related claims against Defendant City of Richmond.

Defendant moves for judgment on the pleadings on all eight causes of action based on the Appellate

Court's reversal of this Court's initial decision that Defendant City of Richmond complied with CEQA.

During the December 06, 2024, hearing the Court heard oral arguments from both parties. Defendant City of Richmond for the first time at the hearing brought up the case *Save Tara v. City of West Hollywood* (2008) 45 Cal.4th 116 (*Save Tara*). The Court initially took the tentative ruling under submission, then issued an order after hearing allowing both parties to provide supplemental briefing and inviting the parties to engage with *Save Tara*. This is the tentative ruling after considering both parties supplemental briefing which were thorough and well written.

For the following reasons, Defendants' MJOP **is sustained without leave to amend.**

Request for Judicial Notice

Defendant in their supplemental brief makes an additional four requests for judicial notice.

Grounds for judicial notice of Exhibits 9, 10, 11, and 12 exist as the documents comprise of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and any of the state of the United States" pursuant to Evidence Code sections 452(c).

All of Defendant's requests for judicial notice are **granted.**

Legal Standard

A defendant may move for judgment on the pleadings on the ground that a cause of action of the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(1) and 438(c)(1)(B)(2)(A); *Environmental Health Advocates, Inc. v. Scream, Inc.* (2022) 83 Cal.App.5th 721, 728.) "A defense motion for judgment on the pleadings 'is akin to a demurrer and is properly granted only if the complaint does not state facts sufficient to state a cause of action against that defendant.' [Citations omitted.] . . . The motion for judgment must be denied if the pleading states a cause of action on any theory. [Citation omitted.]" (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 407-408.) (*See also Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [court is not limited to the theory pled by plaintiff but examines the facts to determine if the demurrer should be sustained].) The Court accepts as true all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.) The grounds for the motion must appear on the face of the pleading or be based on facts subject to judicial notice. (Code Civ. Proc. § 438(d); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.)

Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson, supra*, 232 Cal.App.4th at 408 [emphasis added].) (*See also Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 945 [citing liberal policy of permitting amendment to pleadings and party's right to correct inadvertent errors in allegations].)

Procedural History

Plaintiff filed its initial complaint on May 27, 2022, then filed its FAC on October 27, 2022. Defendant's Demurrer to the FAC was overruled on the merits at the March 16, 2023, hearing. The motion at bar is a Demurrer to the FAC based on the on the Appellate Court's decertification of the SEIR and related project approvals, which include the DDA and DA, the contracts upon which Plaintiff's contract related causes of action are based on.

Factual Background

2019 Stipulated Federal Judgment

This case involves the development of Point Molate, “an approximately 425-acre parcel of land in the City of Richmond, bordering on the San Francisco Bay, rising to the ridgeline that borders the Chevron refinery.” (FAC ¶ 10.) The property was subject to a prior lawsuit in the Northern District of California between nonparties Upstream Point Molate, LLC and the Guidiville Rancheria of California (collectively, “GU”) that resulted in an amended judgment issued on November 21, 2019 (“Federal Judgment”). (FAC ¶ 12.) Pursuant to the Federal Judgment, the City was to market Point Molate’s Development Areas for sale or lease to qualified developers. The net revenues from any such sale were to be split between the City and GU. However, if any portion of the Development Areas remained unsold 30 months after the entry of the Federal Judgment (i.e. May 21, 2022), then GU would have the option to buy any unsold portion of the Development Areas for \$100 per Development Area or portion thereof (the “Federal Judgment Purchase Option”). If no development occurred, Guidiville Rancheria of California (collectively, “GU”) would have the option to buy Point Molate for \$400. (FAC ¶ 13.)

The FAC alleges “[i]n 2019 the City and Winehaven commenced negotiations for Winehaven’s purchase of the Development Areas, for creation of a mixed-used development (“Project”). The City and Winehaven agreed on a purchase price of \$45 million, and on a set of approvals enabling the City to sell the Development Areas to Winehaven in compliance with the terms of the Federal Judgment.” (FAC ¶ 14.) “The parties’ negotiations culminated in Winehaven and the City’s execution of the Development Agreement (‘DA’) and the Disposition and Development Agreement for Point Molate Mixed-Use Development (‘DDA’) in fall 2020.” (FAC ¶ 16.) “Both the DA and the DDA obligate the City to work cooperatively and in good faith with Winehaven to establish a Mello Roos Community Facilities District (the “Point Molate CFD”) as part of Winehaven’s financing of the mixed-use development.” (FAC ¶ 17.)

Appellate Decertification of CEQA SEIR

In accordance with CEQA, the parties prepared and issued publicly a Notice of Preparation and a Draft Subsequent Environmental Impact Report (“SEIR”) on July 12, 2019. (RJN, Exh. 2.) “After a period of public comment between July 2019 through August 2020, the City issued a series of public notices – including Notices of Preparation and Completion – providing access to the Draft and Final SEIR for the proposed project.” (RJN, Exh. 4 at p. 5; 3.) “The environmental impacts of the Project were evaluated in a Subsequent Environmental Impact Report (State Clearinghouse No. 2019070447), which was prepared pursuant to the California Environmental Quality Act (‘CEQA’), was recommended for certification by the Planning Commission on August 20, 2020, by Resolution No. 20-12, and certified with findings by the City Council on September 8, 2020, by Resolution No. 97-20 (certifying SEIR) and Resolution No. 97-20 (adopting findings) (the ‘SEIR’).” (FAC, Exh. A thereto, at Recitals, G.)

The City “approved [the DDA] and the disposition of the Property...at its regular meeting held on September 8, 2020. The City Council approved that certain statutory Development Agreement for the Project (the ‘Development Agreement’) following Planning Commission review and recommendation, at the City Council’s regular meeting held on September 15, 2020.” (FAC, Exh. A thereto, at Recitals, I.)

On or about October 9, 2020, “[t]he City and Winehaven received two petitions challenging the City’s approval of the Project under the California Environmental Quality Act (‘CEQA’) and Planning and Zoning Law and alleging improper delegation of police powers and violation of the Constitution (‘CEQA Petitions’).”² (FAC ¶ 22.) The FAC alleges that “[t]he City and Winehaven successfully defended the CEQA Petitions in Contra Costa County Superior Court...” and “Petitioners [] appealed the

judgment”. (FAC ¶ 23.)

On October 27, 2023, the First District Court of Appeal issued its opinion in the consolidated CEQA Appeal upholding in part and reversing in part Contra Costa County Superior Court’s March 15, 2022, judgment. (RJN, Exh. 4.) The Court of Appeal found the SEIR technically deficient in its analysis of mitigation measures, and on November 27, 2023, the Court of Appeal filed a Final Opinion and Order Modifying Opinion and Denying Rehearing including in pertinent part: The judgment is reversed with directions to the trial court to enter a new judgment granting the petitions and to issue a peremptory writ of mandate directing the City to set aside its certification of the final SEIR and related project approvals. (RJN, Exh. 5.)

On January 22, 2024, in compliance with the CEQA Decision, Contra Costa County Superior Court entered a new Judgment and Peremptory Writ of Mandate ordering the City of Richmond to: (1) set aside and vacate its approvals of the Point Molate project, including Resolution No. 97-20 and Ordinances Nos. 22-20 and 23-20; (2) decertify the environmental impact report (generally “EIR”) for the project (SCH No. 2019070447) for the purpose of addressing the deficiencies identified in the CEQA Decision; and (3) file a return to the writ within 120 days of the new judgment by no later than May 21, 2024. (RJN, Exh. 6.) On May 7, 2024, the City Council adopted Resolution No. 34-24 vacating and setting aside (RJN, Exh. 7):

- City Council Resolution No. 97-20 that certified the SEIR and approved the General Plan Map and Text Amendments, Disposition and Development Agreement, Vesting Tentative Tract Map, Conditional Use Permit, and Major Design Review (PLN 20-57) for the Point Molate Mixed-Use Project;
- City Council Ordinance No. 22-20, under which the City Council approved the rezoning of the Project Site to Planned Area (PA) for the Point Molate Mixed-Use Project; and
- City Council Resolution No. 23-20, under which the City Council approved the Development Agreement for the Point Molate Mixed-Use Project.

Allegations of CFD Formation Delay

In the FAC, it is alleged that the City breached the DDA and DA based on the new City Council members. (FAC ¶ 24.) The FAC purports the Council's new majority engaged in a sustained effort to undermine the Project and thwart Winehaven 's ability to acquire the Property by engaging in protracted delays and stall tactics regarding the Point Molate CFD formation. (FAC ¶ 26-27.) Plaintiff claims that “[f]ollowing the change in composition, the City thereafter engaged in protracted delays and stall tactics regarding Point Molate CFD formation...” (FAC ¶ 27.) Based on this alleged pretext, Plaintiff claims the City breached the DDA and DA by failing to adopt a resolution of intent to establish a CFD on March 18, 2024. (FAC ¶ 60.)

On August 29, 2022, as required under the Federal Judgment, a deed was recorded in the Contra Costa County Recorder’s office whereby the City assigned its right and interest in the Point Molate property to GU as required under the Federal Judgment. (Request for Judicial Notice (“RJN”), Exh. 1.)

Analysis

First, Second and Fifth Contract Related Causes of Actions Fail

It is uncontroverted that the subject DDA constituted an approval and had a certified EIR that was decertified by the First District Appellate Court. The only way to for Plaintiff’s breach of contract claim to survive is through severance of the Mello Roos Community Facilities District section of the DDA. This is fatal to Plaintiff’s claims as Defendant points out because the issue of severance was fully

briefed, decided, and denied by the appellate court when they decertified the EIR.

Only a Court can Authorize Severance of an Agreement Pursuant to Public Resources Code Section 21168.9.

Under Public Resources Code § 21168.9, upon a finding of the agency's noncompliance with the California Environmental Quality Act, Pub. Res. Code. § 21000 et seq., the court must enter an order mandating that the agency set aside its decision and take any necessary action to achieve compliance. (City of Redlands v. County of San Bernardino (2002), 96 Cal. App. 4th 398, 117.) Public Resources Code 21168.9 only provides a court with the legal authority to sever a "portion or specific project activity or activities."

The CEQA Decision did not keep any portion of the Point Molate project in place, including specifically the DDA. while in *Save Tara* the Supreme Court remanded the matter to the trial court to determine the above, in the CEQA Decision, here, the First District Court of Appeal made the decision for the trial court invalidating the SEIR and DDA in whole per section 21168.9(a)(1). The final CEQA Decision states: "The judgment is reversed with directions to the trial court to enter a new judgment granting the petitions and to issue a peremptory writ of mandate directing the City to set aside its certification of the final SEIR and related project approvals. Plaintiffs shall recover their costs." (RJN, Exh. 5.) No court in this instance severed the Mello Roos Community Facilities District section of the DDA.

The First District Court of Appeal Already Considered and Denied Plaintiff's And The City's Request to Sever The DDA Under Public Resources Code Section 21168.9.

The City filed the MJOP after the City and Plaintiff both requested to keep portions of the project alive. The Court of Appeal rejected those arguments. Specifically, on October 27, 2023, the Court of Appeal issued a Ruling after Oral Argument that did not invalidate the DDA. (see RJN Exh. 4.)

On November 27, 2023, after an additional round of briefing on the severance issue, the Court of Appeal issued its "Order Modifying Opinion And Denying Hearing" making unequivocal that the trial court had no discretion to consider severance under section 21168.9 and that all related project approvals must be rescinded to ensure full CEQA compliance. (RJN, Exh. 5.) On January 22, 2024, this Court issued a Peremptory Writ of Mandate – agreed to as a matter of form by Plaintiff's counsel of record – ordering the decertification of the SEIR and invalidation of the DDA in whole. The approvals were rescinded by the City Council in May 2024. (RJN, Exh. 7.) Plaintiff cannot relitigate an issue which has been unequivocally determined by a higher court – the scope of relief necessary to fulfill CEQA's mandate.

All Other Causes of Action Also Fail

Defendant's MJOP for all other causes of action stemmed from the theory that Plaintiff's contract related causes of action were meritless. Since the Court found Plaintiff's contract related causes of action hold no muster to withstand the attack at the pleading stage, the Court also sustains Defendant's MJOP on the third, fourth, and sixth through eighth causes of action.

Conclusion

For the reasons analyzed above, **Defendant's MJOP is sustained without leave to amend.**

**2. 9:00 AM CASE NUMBER: C22-01706
CASE NAME: JOHN DEERE FINANCIAL, F.S.B. VS. PERMINDER PANDAL
*HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JOHN DEERE FINANCIAL, F.S.B.**

TENTATIVE RULING:

The court sets aside the dismissal and enters judgment in favor of plaintiff in the amount of \$22,200. Plaintiff is awarded costs in the amount of \$904.88. The total amount awarded to plaintiff is \$23,104.88.

3. 9:00 AM CASE NUMBER: C22-01888

CASE NAME: EARNEST JOHNSON VS. DANIEL KUIKEN

HEARING ON SUMMARY MOTION

FILED BY: KUIKEN, DANIEL

TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant Daniel Kuiken dba Kuiken Trucking Co. For the reasons set forth, the motion is **granted**.

Background

This action arises out of a motor vehicle accident in which Plaintiff Earnest Johnson struck a cow on Interstate 80 on January 17, 2021, shortly after midnight. (Def. Sep. Stmt. of Undisputed Material Facts ("UMFs"), UMF No. 1.) The cow involved in the accident was owned by defendant Daniel Kuiken and was part of a cattle herd owned by Kuiken grazing on Hanna Ranch since September 2020. (UMF Nos. 2-5.) Defendant was leasing Hanna Ranch when the incident occurred. (UMF No. 2.) Hanna Ranch includes a parcel south of Interstate 80 and a 100-acre parcel north of Interstate 80 near Crockett. (UMF Nos. 3, 4.)

Plaintiff's first amended complaint ("FAC"), the operative pleading in the case, alleges a single cause of action for negligence against Kuiken. (FAC PDF pp. 4-5.) Defendant moves for summary judgment on the ground that Plaintiff cannot prove, and does not have and will not be able to obtain, evidence that Defendant breached his duty of care and thereby caused or contributed to the accident. Plaintiff has not opposed the motion, despite what appears to be due and proper service of the motion and supporting pleadings and an amended notice of the hearing on the motion filed November 25, 2024, all with proofs of service attached listing the address for Plaintiff shown on the face page of his FAC.

Legal Standards for Ruling on Defendant's Motion for Summary Judgment

A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 855; Code Civ. Proc. § 437c(p)(2).)

Generally, a defendant has met its burden "if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

"Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all

reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

Even though unopposed, the Court independently reviews a motion for summary judgment to determine whether the motion demonstrates by admissible evidence that there is no triable issue of material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 241.) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

Analysis

Plaintiff's FAC alleges on January 17, 2021, plaintiff was "driving on freeway [sic] and I hit a cow belong[ing] to Daniel Kuiken dba Kuiken Trucking Co.," and plaintiff sustained personal injuries, property damages, and wage loss. (FAC PDF p. 5.) He attaches a copy of the police report regarding the accident, which adds details that it was dark and the cow was black and was struck in the first eastbound lane of the interstate highway.

A. Legal Framework for Liability for Loose Livestock

The elements of negligence are "a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) (See also *Hayes v. County of San Diego* (2013) 57 Cal.4th 622, 629 ["'In order to prove facts sufficient to support a finding of negligence, a plaintiff must show that [the] defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.' [Citation omitted.]"]). Generally, the breach and causation elements of these claims are "fact-specific issues for the trier of fact," while "the existence and scope of a duty are questions of law." (*Staats v. Vintner's Golf Club, LLC* (2018) 25 Cal. App. 5th 826, 832.)

"Generally, whether a defendant was negligent constitutes a question of fact for the jury. [Citations omitted.] However, where reasonable jurors could draw only one conclusion from the evidence presented, lack of negligence may be determined as a matter of law, and summary judgment granted. [Citation omitted.]" (*Federico v. Superior Court* (1997) 59 Cal.App.4th 1207, 1214.) (See also *Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687 [breach of duty and causation are generally questions of fact but may be resolved as a matter of law where the undisputed facts lead reasonably only to one conclusion, stating "If the circumstances permit a reasonable doubt whether the defendant's conduct violates the standard of due care, the doubt must be resolved by the jury as an issue of fact rather than of law by the court."].)

In a statute directly addressing the general facts presented here, Food and Agricultural Code section 16902 provides: "A person that owns or controls the possession of any livestock shall not willfully or negligently permit any of the livestock to stray upon, or remain unaccompanied by a person in charge or control of the livestock upon, a public highway, if both sides of the highway are adjoined by property which is separated from the highway by a fence, wall, hedge, sidewalk, curb, lawn, or

building." There is no presumption of negligence by the owner of livestock when an accident occurs between a motor vehicle and an animal on a highway. (Food and Agr. Code § 16904.) (See also *Pepper v. Bishop* (1961) 194 Cal.App.2d 731, 733-734 [affirming jury verdict for defendant in motor vehicle accident involving four horses escaped in which Court instructed jury against presumption of negligence under former Agriculture Code section 423, with language similar to Food and Agr. Code § 16904.]

B. Undisputed Material Facts Presented in the Motion

The evidence in support of the motion includes deposition testimony of the plaintiff and of Officer Scott Hoshi-Nagamoto of the Contra Costa County Sheriff's Department, as well as declarations of defendant Kuiken and Adrian Siesser, who was Kuiken's ranch manager from 2020 to 2022. Defendant's UMFs include the facts that his cattle on the 100-acre parcel from which the cow escaped were allowed to roam within a secured area that was bounded by three and a half-foot high, six-strand barbed wire fencing and secured and locked access gates, and that defendant repaired the fencing where needed and installed new fencing. (UMF Nos. 6-8, 10.) Defendant also regularly inspected the fencing and gates to ensure they were secure and locked. (UMF Nos. 9, 10.) Two days prior to the accident (January 15, 2021), defendant had installed a new gate, the gate through which the cow escaped, confirmed the gate was locked with a chain, and confirmed that there were no conditions in the fencing that would allow cattle to escape. (UMF No. 10.) Defendant and his ranch manager also inspected the gates on the 100-acre property the around noon the day before the accident (January 16, 2021), and the access gate was locked and the fencing in good condition. (UMF Nos. 9, 11.)

The following day, January 17, 2021, after the accident, defendant inspected the property again and discovered vandalism to the fencing and access gate by unknown third persons, specifically that a hole had been cut in the barbed wire fence, the gate lock had also been cut, and the access gate left open. (UMF Nos. 12, 13, 16.) An investigation by the Contra Costa County Sheriff's office also confirmed that the fencing and gate had been vandalized by a third party and that the vandalism allowed the cow to escape after which it was struck by Plaintiff's vehicle. (UMF No. 16.) Defendant presents evidence that prior to the accident, he had no knowledge of any cattle escaping the ranch and had no reason to suspect any might have escaped based on the inspection of the property, including the fencing and access gate, on the afternoon of January 16, 2021. (UMF Nos. 9, 11, 15.) He also presents evidence that the highway was approximately 200 yards from the gate and fence enclosure where the cow escaped and that based on the typical behavior of cows and the steep downhill slope from the ranch to the highway, it "would not have taken much time" for the cow to reach the highway where it was struck. (UMF No. 17.)

C. Conclusion

"A landowner or possessor owes a duty of care to persons who come on his property as well as to persons off the property for injuries due to the landowner's lack of due care in the management of his property. [Citations omitted.] A landowner may be held liable for negligently allowing livestock to escape from his property onto a highway. [Citations omitted.]" (*Davert v. Larson* (1985) 163 Cal.App.3d 407, 410.) Defendant does not challenge whether he owed a duty of care to try to prevent the cow from escaping, unlike the defendant in *Shively v. Dye Creek Cattle Co.* (1994) 29 Cal.App.4th

1620, a case involving cattle in open range where there was no fencing required. (*Id.* at 1628-1629.) Rather, Defendant has demonstrated that he exercised due care to prevent his cattle from escaping onto the highway by (a) maintaining a barbed wire enclosure for the cattle, (b) installing and maintaining an access gate that was locked and secured, and (c) conducting regular inspections of the fencing and gate where the escaped cow had been enclosed, including conducting an inspection around noon on January 16, 2021, within perhaps roughly 12 hours before the accident occurred. Defendant has also demonstrated that the cow escaped as a result of third-party criminal activity, not any negligence in Defendant's maintenance of the enclosure, including the fencing and gate, and that he did not have notice of the damage to the gate or the cow's escape until he was notified the accident occurred.

Defendant has met his initial burden on the motion by negating the essential element of negligence of breach of duty to exercise due care. Plaintiff has not opposed the motion and presented any evidence to raise a triable issue of fact that Defendant breached his duty. Defendant has demonstrated that there are no triable issues of fact, that Plaintiff cannot prove the essential element of breach of duty by Defendant, and that Defendant is entitled to summary judgment as a matter of law.

4. 9:00 AM CASE NUMBER: C23-00312
CASE NAME: FRANK MCGUIRE VS. MICHAEL ZEIDLER
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: MCGUIRE, FRANK J.
TENTATIVE RULING:

Hearing continued to July 25, 2025, at 9 am.

5. 9:00 AM CASE NUMBER: C23-00591
CASE NAME: CHICAGO TITLE COMPANY VS. LIHONG CHEN
***HEARING ON MOTION IN RE: RECONDISERATION**
FILED BY: CHIOINO, JILL C.
TENTATIVE RULING:

Denied. Defendant Chioino requests the court to reconsider its ruling denying without prejudice Defendant LiHong's motion to compel arbitration against Kwok Chan. Defendant Chioino was not the moving party and made no arguments for the court to reconsider. Nothing prohibits Defendant Chioino from bringing her motion to compel arbitration.

6. 9:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
***HEARING ON MOTION FOR DISCOVERY COMPEL DEF GOLDEN GATE BELL TO PRODUCE DOCS AND COMPLETE WRITTEN RESPONSES (SET 2)**
FILED BY: DOE, JANE
TENTATIVE RULING:

Vacated. Court ordered a discovery referee be appointed.

7. 9:00 AM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

***HEARING ON MOTION FOR DISCOVERY COMPEL DEF GOLDEN GATE FURTHER RESPONSES TO SPECIAL INTEROGS (SET 1)**

FILED BY: DOE, JANE

TENTATIVE RULING:

See line 6.

8. 9:00 AM CASE NUMBER: C23-01109

CASE NAME: DOROTHY TUCKER COOK VS. PARDEEP KUMAR PURI

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**

FILED BY: PURI, PARDEEP KUMAR

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings filed by defendants Pardeep Kumar Puri, Uma R. Puri, and Puri Family 2015 Trust. For the reasons set forth, the motion is **denied**.

Background

Plaintiffs allege they are the biological parents, and successors in interest and survivors, of K'Lea Alexandria Barbra Ann Davis ("decedent"), a 12-year old minor who was shot and killed by defendant Michael Fritz in May 2021. (Second Amended Complaint ("2AC") ¶¶ 1, 4, 5, 20.) Plaintiffs allege that defendants Pardeep Kumar Puri, Uma R. Puri, and Puri Family 2015 Trust (collectively for convenience, the "Puri Defendants") are the owners of a single family residence in Antioch (the "Premises") where the shooting occurred. (2AC ¶¶ 9, 10.) The operative 2AC includes three causes of action. Only the first and second causes of action allege claims against the Puri Defendants for wrongful death and a survival action based on a negligence theory. The third cause of action alleges wrongful death based on battery against defendant Fritz. (2AC ¶¶ 48-57.)

Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(1) and 438(c)(1)(B)(ii); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"].) (See also *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 602 [motion for judgment on the pleadings is analogous to demurrer; court accepts allegations as true and is not concerned with plaintiff's ability ultimately to prove the claims].)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The grounds for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]]; *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed [citation omitted]. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation].' [Citation omitted.]") As in the case of a demurrer, the Court accepts all factual allegations of the cross-complaint as true and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Puri Defendants' Reply Evidence

Concurrent with their reply, the Puri Defendants filed a declaration by their counsel with evidentiary material to support their factual arguments contesting the facts alleged in the 2AC, including what Sell declares is a copy of the lease for the premises dated in 2012, as well as responses by one of the Puri Defendants to special interrogatories and form interrogatories propounded by Plaintiffs. (Sell Reply Decl. Exhs. C and D.) The Court does not consider evidence in ruling on a motion for judgment on the pleadings, other than evidence subject to judicial notice. Neither the lease nor interrogatory responses by the defendant moving for judgment on the pleadings the proper subject of judicial notice under Evidence Code section 452(h) as the evidence is disputable.

Analysis

The Puri Defendants move for judgment on the pleadings as to all three causes of action in the 2AC. They argue that none of the causes of action alleged in the 2AC state facts sufficient to state a cause of action against them.

A. Lack of "Sworn" Allegation and Allegations Made on Information and Belief

The Puri Defendants argue that the allegations against them "are made on 'information and belief,' not sworn non-hearsay allegations of triable fact by a person of competent knowledge." (MPA ISO Mot. p. 2, ll. 2-3.) The complaint is not verified, but moving parties cite no authority that required the complaint to be verified. Further, to the extent the argument regarding lack of sworn allegations of "triable fact by a person of competent knowledge" is an argument that the complaint is required to plead evidentiary facts, the law is to the contrary. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872 ["To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. [Citation omitted.]"]; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550 ["[T]he complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts."].)

A party may allege facts on information and belief if the party alleges the basis for the party's information or belief. (*Doe, supra*, 42 Cal.4th at 550, 551 fn. 5 ["'[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.'"]; *Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106-1107, as modified on denial of reh'g (Nov. 6, 2019), aff'd, (2021) 11 Cal. 5th 204.) Where the facts are "peculiarly" within the knowledge of the defendants, the facts may be pleaded on information and belief. (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922 fn. 7 {rejecting argument that facts alleged on information and belief should be disregarded, as "[a]llegations concerning matters 'peculiarly within the knowledge of the adverse party,' . . . may be pleaded in this manner. [Citation omitted.]"}; *Dey v. Continental Central Credit* (2008) 170 Cal.App.4th 721, 725, fn. 1.)

B. 1st and 2nd C/As Founded on Negligence

The Court's prior tentative ruling sustaining the demurrer to the FAC stated the general rule that "liability has been allowed when there is something foreseeably dangerous about the nature of activity conducted on the property or the property itself which fixes on the landowner the duty to take some sort of precaution," citing *Eric J. v. Betty M.* (1999) 76 Cal.App.4th 715, 721. (1/19/2024 Order.) The Court referred to the absence of allegations explaining how the shooting incident was foreseeable to the property owners or supporting that the owners had a duty of care to "screen tenants, supervise firearms on the premises, and engage in efforts to deescalate hostilities between tenants and guests." (1/19/2024 Order.) The Puri Defendants contend that they owed no duty to the decedent, among other things, because landowners generally are not liable for criminal conduct on their premises in the absence of prior similar incidents and have no general duty to affirmatively act to prevent harm by third parties.

1. Relevant Allegations of the 2AC

Plaintiffs have added allegations to the 2AC regarding the notice the Puri Defendants allegedly had from neighbors and others regarding suspicious or nefarious activities on the Premises and of the presence of firearms that Fritz, a possessor of the Premises, allegedly had at the Premises. Plaintiffs make the allegations in paragraphs 15 and 19 on information and belief. Specifically, they allege on information and belief that the Puri Defendants were informed by neighbors, tenants, or residents of "nefarious activities occurring at their PREMISES, including sex trafficking or exploitation of underaged girls. Neighbors, residents, and/or tenants of their PREMISES told the [Puri Defendants], other residents and/or tenants, including DEFENDANT FRITZ, kept firearms on their property and were actively bringing underaged girls to the property; including the child DECEDENT, for the purpose of furthering such nefarious activities." (2AC ¶ 15.) Plaintiffs also allege on information and belief that even after being informed of the nefarious criminal activities occurring at the Premises and the existence of firearms at the Premises, the Puri Defendants negligently took no action and did not follow up on those complaints, including failing to implement any security measures or to implement security measures that were adequate. (2AC ¶ 19.) Whether the Puri Defendants were notified or informed by neighbors, residents or others of criminal activity on the Premises, including sex trafficking, and the presence of firearms, are facts that are within the peculiar knowledge of the Puri Defendants themselves, and the basis of Plaintiffs' information and belief on which the facts are alleged is reasonably construed as information from the neighbors, tenants or others.

As the Puri Defendants point out in reply, the 2AC does not actually allege that the Puri Defendants leased the Premises to Fritz, but rather it alleges that each of the Puri Defendants and Fritz "owned, maintained, controlled, possessed, managed, rented, leased, and/or operated housing" at the Premises; it is unclear whether Plaintiffs allege Fritz rented the Premises or merely possessed or operated at the Premises. (2AC ¶ 9.) In addition to the facts cited above, the 2AC alleges, not on information and belief, that (1) the decedent was killed on the Premises; (2) the Puri Defendants expressly and impliedly invited the decedent onto the Premises, (3) on May 21, 2021 when decedent was killed, the decedent was at the Premises "by the express and implied invitation of DEFENDANTS, and for the benefit of the possessors of" the Premises (2AC ¶¶ 10, 20); (3) based on the Puri Defendants' communications with neighbors, tenants, and/or residents, the Puri Defendants "knew of nefarious and high-risk criminal activities" at the Premises but "took no reasonable actions to

ameliorate the situation and prevent harm to individuals" at the Premises; (4) the risk of Fritz "carrying a firearm and engaging in the negligent and felonious shooting of" the decedent on the Premises or would cause harm to the decedent was reasonably foreseeable; (5) the Puri Defendants were "business proprietors," and they had a special relationship with the decedent who was visiting the Premises; and (6) they negligently maintained, controlled, secured, or inspected the Premises allowing an unsafe environment to exist at the Premises. (2AC ¶¶ 10, 16, 20, 21, 24, 26, 27, 28, 29.)

The 2AC also identifies four specific acts or omissions as to the manner in which the Puri Defendants failed to exercise due care by: (1) failing to "deter resident(s) from engaging in nefarious activities" causing great bodily harm, (2) not addressing complaints from neighbors or other about safety risks or "suspicious behavior" at the Premises, (3) allowing tenants, residents, visitors, invitees and/or guests to "engage in reckless or dangerous behavior on the property that could lead to injury and/or death" of visitors, invitees or guests, and (4) not screening tenants or residents with "a history of violent behavior or criminal activity from residing or frequenting" the Premises. (2AC ¶ 30.) (*See also* 2AC ¶¶ 31-33.)

2. Application of Case Authorities to the Allegations

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) A claim for negligence can be alleged generally. (*Hahn, supra*, 147 Cal.App.4th at 747-748 ["Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. [Citations omitted.] '[T]here is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act.' [Citation omitted.] The complaint here alleged that respondents 'negligently cared for, diagnosed and treated' Ms. Hahn. Those allegations were sufficient."].) (*See also Barber v. Chang* (2007) 151 Cal.App.4th 1456, 1461, 1469 fn. 2.)

The Puri Defendants cite several decisions addressing the duty of a landlord to protect against third party criminal activity and the scope of the landlord's duty. In most of the decisions, the determination of the existence of the landlord's duty and the scope of any duty were made on an evidentiary record, either by nonsuit at trial or the equivalent, or on summary judgment, not on a motion for judgment on the pleadings such as that presented in this case. (*Barber, supra*, 151 Cal.App.4th 1456 [summary judgment for landlord reversed]; *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 670 [affirming Court of Appeal ruling that landlord of commercial property was entitled to summary judgment because "under the facts of this case, the owner did not owe a duty to provide security guards"]; *Castenada v. Olsher* (2007) 41 Cal.4th 1205, 1210 [affirming grant of nonsuit for defendant, and expounding on legal framework for analysis of existence and scope of landlord's duty to protect against third party criminal conduct but concluding the facts known to the landlord in that case did not impose the duty to evict the gang member tenants]; *Tan v. Arnel Management Co.* (2009) 170 Cal.App.4th 1087, 1090, 1094-1095 [reversing the equivalent of a nonsuit for the landlord where motion for judgment on the pleadings was granted to landlord *after* rulings on Evidence Code section 402 motions in limine with evidence]; *Davis v. Gomez* (1989) 207 Cal.App.3d 1401, 1405-1406 [affirming summary judgment for landlord where landlord was on notice tenant was "casting spells" and had a deteriorating mental condition but there was no evidence of her brandishing a gun prior to her shooting the victim visiting the property].) (*See also Eric J., supra*,

76 Cal.App.4th 715, 720 [nonsuit for landlord at trial].)

In the two cases cited by the Puri Defendants in the negligence claim was addressed on a demurrer, the Court of Appeals reversed orders sustaining the demurrers in favor of the landlords. (*O'Hara v. Western Seven Trees Corp.* (1977) 75 Cal.App.3d 798, 802-803 [reversing order sustaining demurrer to claim by tenant who was raped in her apartment, where tenant alleged landlord failed to provide adequate security and failed to disclose information about a man who had allegedly raped other tenants, stating more recent cases have found liability "where landlords have failed to take reasonable steps to protect tenants from criminal activity. [Citations omitted.] It has been held that since only the landlord is in the position to secure common areas, he has a duty to protect against types of crimes of which he has notice and which are likely to recur if the common areas are not secure."]; *Kwaitkowski v. Superior Trading Co.* (1981) 123 Cal.App.3d 324, 326, 328-329 [reversing trial court ruling sustaining demurrer on claim against landlord, in which nontenant assaulted plaintiff in dark lobby of apartment building in a high crime area where front door lock was broken, and complaint alleged landlord was aware of the broken lock and of prior assaults in the building].)

The Puri Defendants contend that they owed no duty to the decedent to protect against the harm that occurred in this case. "Although duty is a legal question, the factual background against which we decide it is a function of a particular case's procedural posture." (*Castaneda, supra*, 41 Cal.4th at 1214 [emphasis added].) (*See also Tan, supra*, 170 Cal.App.4th at 1094 [same].) The duties of a landlord extend to visitors and third party guests as well as tenants. (*Davis, supra*, 207 Cal.App.3d at 1403-1404 [citing *Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, a case involving tenant's dog injuring a visitor to the property].)

Relying on *Ann M., supra*, 6 Cal.4th 666, the Court in *Barber, supra*, summarized the principles governing the general duty of landowners: " 'California law requires landowners to maintain land in their possession and control in a reasonably safe condition' and, '[i]n the case of a landlord, this general duty of maintenance, which is owed to tenants and patrons, has been held to include the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.' [Citation omitted.] But 'a duty to take affirmative action to control the wrongful acts of a third party will be imposed only where such conduct can be reasonably anticipated.' [Citation omitted.] . . . [¶] Thus, when the third party crime is committed by a tenant, foreseeability turns on whether the landlord had 'notice of [the tenant's] propensity for violence.' [Citations omitted.] . . . [¶] Foreseeability is a 'crucial factor' in determining not only the existence of the landowner's legal duty, but its 'scope.' [Citation omitted.]" (*Barber, supra*, 151 Cal.App.4th at 1463-1464 [emphasis added].) The Court in that case rejected the defendant's argument that prior incidents committed by the tenant had to be nearly identical to make the conduct causing harm to the plaintiff foreseeable, stating that "To establish heightened foreseeability, the law requires 'prior *similar* criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior *nearly identical* criminal incidents.' [Citation omitted.]" (*Id.* at 1466 [italics in original].)

The determination of the existence of a duty and scope of the duty by a landlord to protect against foreseeable third party criminal conduct is made under a " 'sliding-scale balancing formula' " which "requires the court in each case (whether trial or appellate) to identify the specific action or actions the plaintiff claims the defendant had a duty to undertake." (*Castanena, supra*, 41 Cal.4th at 1214.)

The Court then analyzes " 'how financially and socially burdensome these proposed measures would be to the landlord. ' " (*Id.*) " 'Once the burden and foreseeability have been independently assessed, they can be compared in determining the scope of the duty the court imposes on a given defendant. The more certain the likelihood of harm, the higher the burden a court will impose on a landlord to prevent it; the less foreseeable the harm, the lower the burden a court will place on a landlord.' [Citation omitted.]" (*Id.*) The Court in *Castenada* held landlords generally do not have a duty to reject prospective tenants who they have reason to believe are gang members and did not impose a duty to screen or not rent to such a prospective tenant. (*Id.* at 1210.) The Court though also held that "a residential tenant's behavior and known criminal associations may, in some circumstances, create such a high level of foreseeable danger to others that the landlord is obliged to take measures to remove the tenant from the premises or bear a portion of the legal responsibility for injuries the tenant subsequently causes." (*Id.*)

The complaint in *Barber v. Chang* alleged Chang owed the plaintiff a " 'duty of reasonable care' and 'a duty to take reasonable action to protect plaintiff from harm' " and that "Chang breached his duty of care 'by failing to take reasonable steps to provide security for Plaintiff from known threats and conditions present at the rented premises.' " (*Id.* at 1461.) These general allegations are similar to ones made in the 2AC, consistent with the case law that negligence may be alleged generally. (2AC ¶¶ 23-28, 30-33.) The 2AC also now includes allegations regarding not just the criminal activity conducted by Fritz at the Premises but also that the Puri Defendants were notified of that activity, including sex trafficking of underage girls and Fritz's possession of firearms in connection with his activities, as cited above.

In this procedural posture, unlike most of the cases relied on the Puri Defendants, there is no evidentiary record but only the allegations of the 2AC, which must be accepted as true and liberally construed based in ruling on a motion for judgment on the pleadings under Code of Civil Procedure section 438. The Court finds the 2AC includes allegations that support the potential foreseeability of the incident on which the negligence claims are based and therefore a potential duty by the landlord. The Court cannot conclude that the facts alleged are insufficient as a matter of law to provide notice to the Puri Defendants as landlords of criminal activity on the Premises constituting "indications of a reasonably foreseeable risk of violent criminal assaults" such as the one resulting in the shooting of decedent to give rise to some duty to implement protective measures to prevent harm to invitees or visitors at the Premises. (*Barber, supra*, 151 Cal.App.4th at 1466.)

C. Battery – Wrongful Death Against Fritz (3rd C/A)

The Puri Defendants move for judgment on the pleadings on the third cause of action. (Am. Mot. p. However, they are not named as defendants in the third cause of action, and that cause of action does not allege any claim against them. The motion is therefore denied on that ground as to the third cause of action.

9. 9:00 AM CASE NUMBER: C23-01268
CASE NAME: SARAH DAVIS VS. ESSEX PROPERTY TRUST, INC.
HEARING ON SUMMARY MOTION
FILED BY: ESSEX PROPERTY TRUST, INC.
TENTATIVE RULING:

Defendant Essex Property Trust, Inc. [Defendant] bring this Motion for Summary Judgment, or in the alternative, Motion for Summary Adjudication [Motion]. The Motion is opposed by Plaintiff Sara Ashley Davis [Plaintiff].

For the following reasons, the Motion is **denied**.

Background

Plaintiff's Complaint alleges one cause of action for premises liability against all defendants. This claim arises from a slip and fall incident that occurred on May 29, 2021 [Incident], during the first month of Plaintiff's tenancy at 1112 Promontory Terrace, San Ramon, California 94583 [Unit]. (Defendant's Separate Statement of Undisputed Material Facts and Opposing Parties Response [DMF], # 1-2, 7; Plaintiff's Separate Statement of Undisputed Material Facts and Opposing Parties Response [PMF], # 2.) Defendant was the property manager for the Unit during the relevant period. (DMF, # 16-17.) Defendant, "as agent for the owner," entered into a lease agreement with Plaintiff for the Unit [Lease]. (DMF, # 1, 7, Ex. F at p. 1.) The term of the Lease commenced May 13, 2021. (Ibid.) The owner of the subject property, defendant Crow Canyon Apartments [Owner], is not identified in, or made a party to, the Lease. (Ibid.)

Plaintiff alleges and testified that on May 29, 2021, she slipped and fell while entering a bathtub in the Unit [Bathtub] and sustained injuries as a result. (Complaint, ¶ 8; PMF # 2-6.) Plaintiff alleges that she fell because the Bathtub floor was dangerously slippery, since Essex failed to use due care to ensure the Bathtub was in a safe condition when the Unit was leased to Plaintiff. (Complaint, ¶¶ 8, 12.)

The evidence shows that Defendant contracted with its approved vendor, licensed painting contractor, Limitless Painting, to re-glaze the Bathtub of the Unit after the Unit was vacated by the prior tenant and shortly before Plaintiff leased the Unit. (DMF # 18-27, 36-43, 46; PMF, # 24.) Defendant presents evidence that Limitless Painting had reglazed bathtubs for Defendant prior to working at Plaintiff's unit, that such work was performed according to the manufacturer's instructions, and that Defendant had no prior complaints about reglazing work performed by Limitless Painting. (DMF, # 47-52.) The evidence also shows that, prior to leasing the Unit to Plaintiff, Defendant's employee, Edwin Lew [Lew], visually inspected the Unit and visually reviewed the work of Limitless. (DMF, # 19, 28-32, 45; PMF # 19.) No evidence shows or implies that Lew tested the slipperiness of the Bathtub in any way after it was re-glazed and before it was leased to Plaintiff. (Ibid.) An anti-slip material was applied August 28, 2021. (PMF, #27.)

Standard

Burden of Proof for Summary Judgment or Summary Adjudication

A party may move for summary judgment in any action or proceeding on the ground that the action has no merit. (Code of Civil Procedure 437c(a).) A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established. (Code of Civil Procedure 437c(o)(1).) The party moving for summary judgment carries both the burden of persuasion and the burden of

production of evidence. (Evid. Code, § 500; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

In moving for summary adjudication, a defendant must demonstrate that it is more likely than not that a cause of action has no merit. A defendant meets his burden of proof if he shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849, 855; Code Civ. Proc., § 437c, subd. (o)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff to show by preponderance of the evidence that a triable issue of one or more material facts exists. (*Aguilar, supra*, 25 Cal.4th at 852.) The plaintiff must set forth specific facts. (*Ibid.*)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom ..., in the light most favorable to the opposing party.” (*Id.* at 843, internal citations and quotes omitted.) The court must grant the motion if all the papers show that there is no triable issue as to any material fact such that the moving party is entitled to a judgment as a matter of law. (*Ibid.*, citing Cal. Code Civ. Proc. §437c(c).)

The three steps to evaluate the Motion are to first identify the issues framed by the pleadings, then determine whether the moving party's showing establishes facts to negate the opponent's claim and justify judgment in the movant's favor, and only “[w]hen a summary judgment motion *prima facie* justifies a judgment, the third and final step is to determine whether the opposition demonstrates the existence of a triable, material factual issue.” (*Barisich v. Lewis* (1990) 226 Cal.App.3d 12, 15-16.) “The initial burden is always on the moving party to make a *prima facie* showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.)

Material facts are those that relate to the issues in the case as framed by the pleadings. (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 860, citations omitted.) There is a genuine issue of material fact where the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a fact finder could reasonably draw from the evidence. ... [T]he court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.]” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) “The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]” (*Id.* at 840.) “Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Id.* at 839.)

Premises Liability and Negligence

“The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Ct. (Pneumo Abex, LLC)* (2016) 1 Cal. 5th 1132, 1158.) “[T]he threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 837.) “A duty may arise

through statute, contract, or relationship of the parties.” (*Lichtman v. Siemens Industry, Inc.* (2017) 16 Cal.App.5th 914, 920.) “‘The existence of a duty of care is a question of law decided on a case-by-case basis.’ [Citation].” (*Id.* at 930; *Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 534.)

California law establishes the general duty of each person to exercise, in his or her activities, reasonable care for the safety of others. (Civ. Code, § 1714, subd. (a); *Kesner, supra*, 1 Cal.5th at 1142.) Particularly, “landlords, must use reasonable care to protect people who come onto their property. (Civ. Code, § 1714; CACI Nos. 1000, 1001, 1006.) For landlords, reasonable care ordinarily involves making sure the property is safe at the beginning of the tenancy, and repairing any hazards the landlord learns about later.” (*Stone v. Center Trust Retail Properties, Inc.* (2008) 163 Cal.App.4th 608, 612.)

“The most important factor to consider in determining whether to create an exception to the general duty to exercise ordinary care articulated by section 1714 is whether the injury in question was foreseeable.” (*Kesner, supra*, 1 Cal.5th at 1145.) Where it is concluded that the harm was foreseeable, this factor weighs in favor of a duty. (*Ibid.*)

“Foreseeability of harm and breach of the standard of care are ordinarily questions of fact for the jury’s determination.” (*Regents of University of California v. Superior Court* (2018) 29 Cal.App.5th 890, 912.) These issues can be resolved on summary judgment only if, under the undisputed facts there is no room for a reasonable difference of opinion. (*Ibid.*)

Analysis

Defendant defines the issues in its Motion as follows: (1) undisputed material facts establish that Defendant met the standard of care with respect to Plaintiff and, thus, did not breach its duty to Plaintiff, and (2) the undisputed material facts establish that Plaintiff does not possess and cannot possibly obtain evidence to prove that Defendant breached its duty to Plaintiff.

Duty

The issues raised by Defendant’s Motion do not include a contention that Defendant does not have a duty to Plaintiff. However, Defendant attempts to differentiate its duty to Plaintiff from that of the Owner, noting that “a *land owner’s* obligation to maintain a property is a non-delegable duty. (*Srithong v. Total Investment Co.* (1994) 23 Cal.App.4th 721, 725-727.)” (Motion Memorandum of Points and Authorities [MPA], 12:12-14, emphasis in MPA.) Defendant raises this issue again on Reply and argues that Plaintiff has not shown that Defendant owes the same duty to Plaintiff as that of a land owner. However, Defendant presents no precedent to support finding that Defendant did not owe Plaintiff a duty of care or that such duty is lesser than that owed by the Owner under the circumstances of this case. (See, e.g., *Amos v Alpha Prop. Mgmt.* (1999) 73 Cal.App.4th 895, 898 [reversing summary judgment based on duty and breach against owner and property management company on the same grounds].)

The evidence also shows that Defendant leased the Unit to Plaintiff. Defendant is identified as “Landlord” in the lease agreement and Plaintiff is identified as “Resident.” All rights and obligations that arise under the Lease are between Defendant and Plaintiff, not Owner. The evidence also shows

that Defendant was the party that hired the re-glazing contractor and reviewed the contractor's work.

California law establishes the general duty of each person to exercise, in his or her activities, reasonable care for the safety of others. Civ. Code, § 1714, subd. (a). Thus, here, Defendant had a duty to Plaintiff not only due to the privity of contract between the parties, but also due to Defendant's activities with respect to oversight of the reglazing of the Bathtub, the leasing of the Unit to Plaintiff, and its role as property management company tasked with oversight of the habitability of the Unit.

As such, this court finds that Defendant had a duty to exercise due care in carrying out its activities as property manager and "Landlord," as it describes itself in the Lease, and that, in this case, such duty is the same as that imposed by California law on the landowner and landlord. Particularly, California Law makes clear that "[f]or landlords, reasonable care ordinarily involves making sure the property is safe at the beginning of the tenancy, and repairing any hazards the landlord learns about later." (*Stone*, *supra*, 163 Cal.App.4th at 612.)

Breach of Standard of Care

The cases cited by Defendant generally stand for the scope of duty of a landlord and do not support a summary adjudication on the issue of breach. Defendant contends that there are and cannot be any facts to support a finding that Defendant fell below the standard of care.

On Reply, Defendant raises a new argument for the first time, citing *Howard v Omni Hotels Mgmt. Corp.* (2012) 203 Cal.App.4th 403, 443 for the proposition that "the fact that bathtubs are slippery is commonsense." Generally, new issues cannot be raised for the first time on reply as it deprives the respondent of the opportunity to raise opposing arguments about the new issue. (*American Indian Model Schools v. Oakland Unified School Dist.* (2014) 227 Cal. App. 4th 258, 276.) Arguably, Defendant raised this issue in response to Plaintiff's evidence of expert opinion. However, it appears to be a new argument to support the contention that Defendant did not breach its duty of care. As such, this case and this argument should have been raised in the moving papers.

This court notes in *Howard v Omni Hotels Mgmt. Corp.* there was undisputed expert evidence that the subject bathtub met industry standards. Here, Defendant has not presented expert evidence to support its contention that the reglazed Bathtub met industry standards either before or after it was re-glazed. Defendant, instead, presents the testimony of Salih Mehmedic [Mehmedic], owner of Limitless Painting, that he applied an industry standard system for the reglazing of the Bathtub, according to the manufacturer's recommendations. (DMF, # 47-50.) Evidence is not presented to qualify Mehmedic as an expert to opine that his work, the reglazing system he used, or the reglazed bathtub met industry standards. (See *Miller v. Los Angeles County Flood Control Dist.* (1973) 8 Cal.3d 689, 703 [construction standard of care within the knowledge of experts only].) Also, Plaintiff disputes Mehmedic's testimony.

The evidence is that the Bathtub was reglazed shortly before the Unit was leased to Plaintiff and Plaintiff slipped and fell within approx. two weeks after leasing the Unit from Defendant. Defendant argues that it did not breach its standard of care because it hired Limitless Painting to re-glaze the Bathtub, Limitless Painting is a licensed painting contractor and declares that it performed the work

according to the manufacturer's instructions, and Defendant had hired Limitless Painting to reglaze bathtubs in other units and there were no prior complaints about such work. Defendant further argues that it did not breach its standard of care because Lew reviewed the work of Limitless Painting and did not find any issues with overspray on flooring, shower handles in an improper place, runs or drips, scratches, holes, indentations, or peeling. (DMF, # 30.)

Plaintiff presents evidence that she slipped in the Bathtub when she stepped one foot on the floor of the Bathtub, and that she could not get out of the Bathtub after her fall. (PMF, # 4-5.) Plaintiff also presents expert evidence of the slip resistance factor of the Bathtub, and that the slipperiness of the Bathtub was dangerous and the repair to make the Bathtub safe was a minimal cost. (PMF, # 29, 40-43, 58-60.)

Defendant argues against such evidence on the basis that such testing is outside reasonable expectations for Defendant's scope of work in that Defendant did not have a duty to retain an expert to test the slip resistance factor of each bathtub when it is re-glazed. This court does not find that a slip resistant test would be necessary to determine that the Bathtub floor was too slippery for safe use. However, slip resistance testing allows for quantification of the slipperiness of the Bathtub, providing scientific data to give context to Plaintiff's experience and the condition of the Bathtub flooring that Plaintiff encountered.

As discussed above, California precedent holds that for a landlord, reasonable care ordinarily involves making sure the property is safe at the beginning of the tenancy. Defendant appears to accept that it is foreseeable that the Bathtub could be slippery. It is also obvious that a bathtub is intended to be used with water and bare skin. A visual inspection of the Bathtub for imperfections in the application of the reglazing material and reinstallation of the shower components cannot confirm whether a bathtub may be slippery when used for its intended purpose. Defendant has not presented evidence that it inspected the reglazed Bathtub for slipperiness before the property was leased to Plaintiff. Defendant also has not demonstrated that the application of the reglazing material could not affect the slipperiness of the Bathtub. Inspecting the Bathtub for slipperiness does not require retention of an expert to perform slip resistant testing. Instead, such inspection can be conducted using a lay person's sense of touch to determine whether the Bathtub is slippery when one feels it with hand or foot, particularly, when there is water in the tub. The question of whether Defendant breached its duty when Lew did not inspect the Bathtub for slipperiness before Defendant leased the property to Plaintiff is a question for the jury.

For such reasons, this court finds that the evidence demonstrates that there is a triable issue of material fact as to whether Defendant breached its duty of care to Plaintiff.

Objections

The Court need only rule on those objections to evidence that are material to the disposition of the MSJ. (See Code of Civ. Proc. § 437c(q).) As to those objections that are material to this court's ruling above, this court rules as follows:

Defendant Objection No. 1 to Plaintiff Depo p.108:11-108:21 (Ex B to Nematollahi Dec.) - Overruled

Defendant Objection No. 2 to Plaintiff Depo p.117:14 – 117 and pp. 131:4 – 131:10 (Ex B to Nematollahi Dec.) - Overruled

Defendant Objection No. 3 to Plaintiff Depo pp.173:15-173:21 (Ex B to Nematollahi Dec.) - Overruled

Defendant Objection No. 9 to Lew Depo., 40:23 – 41:3 (Ex. C to Nematollahi Dec.) - Overruled

Defendant Objection No. 12 to Moore Dec – Overruled.

Defendant Objection No. 23 to Moore Dec ¶ 13 at p.5:18-20 - Overruled.

Defendant Objection No. 24 to Moore Dec ¶ 13 at p.5:20-25 – Overruled.

10. 9:00 AM CASE NUMBER: C23-02618
CASE NAME: RYAN HABER VS. JANINE DAVIS
***HEARING ON MOTION IN RE: FOR ORDER TO CONSOLIDATE CASE**
FILED BY:
TENTATIVE RULING:

Denied. First, California Rules of Court, rule 3.350 has not been complied with. Rule 3.350 requires a notice of motion to consolidate to list all named parties in each case, the names of those who have appeared and their respective attorneys of record, contain captions of all cases sought to be consolidated, with the lowest number first, and be filed in each case sought to be consolidated. Here, all parties have not been served with the motion to consolidate. Finally, there is no compelling reason to consolidate this complaint for preliminary injunction with a small claims action where judgment has already been entered.

11. 9:00 AM CASE NUMBER: C24-01401
CASE NAME: WILLIAM WU VS. WANAG TAHATAN-BEY
***HEARING ON MOTION IN RE: FOR CONTINUANCE**
FILED BY: TAHATAN-BEY, WANAG
TENTATIVE RULING:

Recommended TR:

Denied as moot. The Court denied Tahatan-Bey's motion challenging jurisdiction. (See 2/21/25 Minute Order.)

12. 9:00 AM CASE NUMBER: MSC17-01280
CASE NAME: CHARLES LEE VS. HAZEL LEE
***HEARING ON MOTION IN RE: TO ENFORCE SETTLEMENT**
FILED BY: LEE, CHARLES
TENTATIVE RULING:

Parties ordered to appear.

13. 9:00 AM CASE NUMBER: MSC17-02330
CASE NAME: CHEKENE VS BOWERS
***HEARING ON MOTION IN RE: ATTORNEY FEES/TAX COSTS**
FILED BY: CHEKENE, MELANIE
TENTATIVE RULING:

The court finds Damon Bowers and Persevere Lending are entitled to attorney fees. The court awards reasonable attorney fees in the amount of \$1,168,885.50.

The court awards costs to Damon Bowers and Persevere Lending in the amount of \$42,033.87.

14. 9:00 AM CASE NUMBER: MSC21-01940
CASE NAME: HUTSON VS. TAYLOR HOUSEMAN, INC
***HEARING ON MOTION IN RE: STRIKE OR IN ALT TAX COSTS**
FILED BY: FALLS LAKE FIRE AND CASUALTY COMPANY
TENTATIVE RULING:

The motion to tax costs is granted in the amount of \$40,377.59

15. 9:00 AM CASE NUMBER: N24-1938
CASE NAME: CLAIM OF: JOSSAFATH ROJAS
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

The court approves the minor's compromise.

16. 9:00 AM CASE NUMBER: N24-1984
CASE NAME: CLAIM OF: KAYLEENA ALVAREZ
HEARING IN RE: PETITION FOR APPROVAL OF COMPROMISE OF CLAIM FILED BY JAMES ALVAREZ
ON 10/30/24
FILED BY:
TENTATIVE RULING:

The court approves the minor's compromise.

17. 9:00 AM CASE NUMBER: N24-2288
CASE NAME: PETITION OF:DISH WIRELESS L.L.C.
HEARING IN RE: RELEASE OF MECHANICS LIEN
FILED BY: DISH WIRELESS L.L.C.
TENTATIVE RULING:

The petition to release the property from the mechanics lien is granted.

Law & Motion
Add-On

18. 9:00 AM CASE NUMBER: C24-01825

CASE NAME: EVELYN GARCIA MARTINEZ VS. VISTABILITY

HEARING ON DEMURRER TO: ANSWER

FILED BY:

TENTATIVE RULING:

Before the Court is a combined demurrer and motion to strike by Plaintiff challenging the amended answer of Defendant VistAbility. For the reasons set forth, the Court rules as follows: (1) demurrer to 9th affirmative defense – **sustained, with leave to amend**; (2) demurrer to 3rd, 4th, 6th, and 10th affirmative defenses – **overruled**; (3) demurrers to 2nd and 8th affirmative defenses – **sustained, without leave to amend** based on Defendant's voluntary withdrawal of those affirmative defenses; (4) demurrers to 5th and 7th causes of action – **moot**, as withdrawn by plaintiff; and (5) motion to strike – **denied**.

Background

Plaintiff Martinez is a former employee of defendant VistAbility. She alleges 13 causes of action with employment-related claims based on stress and anxiety allegedly caused by interactions with other employees at VistAbility, VistAbility's failure to accommodate her disability, and wrongful termination in violation of public policy.

Defendant filed an answer to the complaint, and on September 9, 2024 an amended answer. Plaintiff originally demurred to nine of the ten affirmative defenses in the amended answer (Affirmative Defenses Nos. 2-10) and combined her demurrer with a motion to strike a portion of the amended answer in which Defendant prays for attorneys' fees. (Dem. p. 2, ¶¶ 1-9.)

Legal Standards for Demurrer to Answer

Code of Civil Procedure section 430.20 provides in part that a party may demur to an answer on the ground that it "does not state facts sufficient to constitute a defense," or that the answer is "uncertain." (Code Civ. Proc. § 430.20(a) and (b).) These are the grounds for demurrer asserted by Plaintiff to each of the challenged affirmative defenses.

Code of Civil Procedure section 431.30 provides that an answer to the complaint must include in addition to a "general or specific denial" of the allegations of the complaint, "[a] statement of any new matter constituting a defense." (Code Civ. Proc. § 431.30(b)(2).) A new matter is one on which the defendant has the burden of proof. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239.) Even where an affirmative defense is defectively pled, it may be allowed if the defendant's pleading gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because unpled defenses are waived. (*See Harris, supra*, 56 Cal.4th at 240.)

"The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733.) Affirmative defenses must be pleaded in the same fashion, and with the same specificity, as a cause of action in a complaint. (*FPI Development, Inc.* (1991) 231 Cal.App.3d 367, 384.) Like a complaint, the answer is only required to allege ultimate

facts. (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *FPI Development Inc.*, *supra*, 231 Cal.App.3d at 384.) What constitutes an "ultimate fact" rather than a conclusion is not always clear. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099 [recognizing the distinction "involves at most a matter of degree"]; *Colgan v. Leatherman Tool Group, Inc.* (2006) 135 Cal.App.4th 663, 686 [whether an ultimate fact or one of law "is not always an easy question."].)

In her Reply, Plaintiff cites cases for the proposition that "affirmative defenses must assert new matter" or they are subject to demurrer. (Reply p. 2, ll. 2-5 [emphasis added].) The cited cases do not hold that an affirmative defense "must" allege new matter, that an affirmative defense cannot make an affirmative denial of all or portions of the matters alleged in the complaint, or that an affirmative defense is subject to a demurrer if it does not allege "new matter." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 779-780 ["We do not view our holding—that an agreement purporting to release liability for future gross negligence committed against a developmentally disabled child who participates in a recreational camp designed for the needs of such children violates public policy and is unenforceable—as recognizing a cause of action for gross negligence."]; *Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627 [holding nonlicensure by plaintiff "responsive to an essential allegation of the complaint," such that it was contested by the general denial]; *Walsh v. West Valley Mission Comm. College Dist.* (1998) 66 CA4th 1532, 1546 [holding defendant only presented evidence refuting allegations of the complaint within the scope of its general denial which was permitted by the trial court's order granting relief under Code of Civil Procedure section 473 as the District was "not allowed to argue new matters (affirmative defenses)" but only to defend based on its general denial].)

Legal Standards for Motion to Strike

The Court "may, upon a motion made pursuant to Section 435, or at any time in its discretion" strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc. § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53.) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Supplemental Meet and Confer Declarations and Late-Filed Reply

The original hearing on the demurrer and motion to strike scheduled for January 24, 2025 was continued by the Court by an order requiring the parties to engage in a Code-compliant meet and confer by February 4, 2025. (1/24/2025 Tent. Rul./Order, citing Code of Civil Procedure sections 430.41(a) and 435.5(a).) The prior order directed Plaintiff to file a supplemental declaration attesting to the parties' compliance by February 7, 2025, and continued the hearing to February 21, 2025. The parties failed to meet and confer by the Court-ordered deadline. (See Aceves Decl. filed 2/7/2025.) On February 18, 2025, the parties met and conferred, and Plaintiff's counsel filed a

second supplemental declaration that date, along with a reply.

Plaintiff did not file a reply prior to the January 24, 2025 hearing. The reply filed February 18, 2025 is untimely. (Code Civ. Proc. § 1005(b).) Nevertheless, the Court continued the hearing for a week, and the Court has considered the reply in making this ruling.

Analysis and Ruling on Demurrer

As a result of the parties' meet and confer on February 18, 2025, Plaintiff has **withdrawn** its demurrers to the **fifth and seventh affirmative defenses**, and defendant has agreed to **withdraw** its **second and eighth affirmative defenses**.

There is no demurrer to the **first affirmative defense**, despite Plaintiff's Reply to the contrary. The title of Plaintiff's demurrer and motion to strike as well as the substance of the demurrer (Dem. p. 2, ¶¶ 1-9; 2nd Aceves Suppl. Decl. ¶ 2 filed 2/18/2025) demurred to the second through tenth affirmative defenses. The Aceves Declaration file February 18, 2025 states that a demurrer to the first affirmative defense, as well as the third, fourth, sixth, ninth and tenth affirmative defenses remain at issue and unresolved. (2nd Suppl. Aceves Decl. ¶ 7; Reply p. 2, ll. 15-21.) Plaintiff did not demur to the first affirmative defense, and the Court will not entertain a demurrer to that affirmative defense to the extent it is made for the first time in argument in the late reply.

Plaintiff's demurrer to the **third affirmative defense** that her claims are "barred by the workers compensation exclusivity rule" is **overruled**. Plaintiff alleges in her complaint that she suffered emotional injury (stress, anxiety) by events and interactions occurring during her employment at VistAbility on which her claims for damages are based. (Compl. ¶¶ 11, 15, 17-19, 22, 24.) The allegation that the workers compensation exclusivity rule applies raises a new matter that addresses directly factual allegations of Plaintiff's complaint and provides Plaintiff adequate notice to enable her to meet the defense. (*Harris, supra*, 56 Cal.4th at 240.) The demurrer to the third affirmative defense is **overruled**.

Plaintiff's demurrer to the **fourth affirmative defense**, which asserts Plaintiff's claims are barred by the statute of limitations with citations to specific Code of Civil Procedure limitation of actions provisions, is **overruled**. The fourth affirmative defense meets the requirements for pleading that defense expressly authorized under the Code of Civil Procedure. (Code Civ. Proc. § 458 ["In pleading the statute of limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of section _____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure" (emphasis added)].)

Plaintiff's demurrer to the **sixth affirmative defense** which pleads that Plaintiff "failed to exhaust administrative remedies" is **overruled**. Though asserted as an affirmative defense, the failure to exhaust administrative remedies responds to an essential element of one or more of Plaintiff's claims, since Plaintiff herself has put her compliance with any exhaustion requirement in issue in her complaint. (See Compl. ¶ 9; *People v. Superior Court (J.C. Penney Corp., Inc.)* (2019) 34 Cal.App.5th 376, 399, fn. 15 ["Generally, an affirmative defense relies on a fact that is independent of the factual allegations essential for the plaintiff's claim. [Citation omitted.]" (emphasis added)].) (See also *Zivkovic v. So. Cal. Edison Co.* (2002) 302 F.3d 1080, 1088 [case cited by Plaintiff, stating affirmative defense that negates an element of plaintiff's claim that plaintiff has to prove is not an

affirmative defense that must be pleaded in an answer, and so it is not waived if not pleaded].) The decisions cited by Plaintiff above illustrate that a general denial only puts in dispute "material" allegations of the complaint. (See, e.g., *Advantec Group, supra*, 153 Cal.App.4th at 627 ["The issue here is whether an answer that makes a general denial is sufficient to 'controvert' the pleading of licensure," explaining "[t]he effect of a general denial is to 'put in issue the material allegations of the complaint.' [Citation omitted.] . . . Code of Civil Procedure section 431.10, subdivision (a) defines a 'material allegation in a pleading' as 'one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.'"]; *FPI Development, supra*, 231 Cal.App.3d at 402 [parsing cases addressing the matters within the scope of a general denial of a complaint alleging a claim on a promissory note].) Plaintiff cites no authority that precludes a defendant from asserting in an affirmative defense allegations or contentions that may not be "new matter" to avoid disputes over what constitutes a "material" allegation of the complaint adequately disputed by the general denial or disputes over whether the defendant has waived a defense that should have been affirmatively alleged as a defense as it contains "new matter." The demurrer as to this affirmative defense is overruled because this defense is an affirmative denial of Plaintiff's claims and is sufficiently alleged. (Code Civ. Proc. § 430.31(b)(1).)

Plaintiff's demurrer to the **ninth affirmative defense** is **sustained, with leave to amend**. That Plaintiff's wrongful termination "is justified by the after-acquired evidence doctrine" is a legal contention or conclusion not supported by any factual allegations set forth in this affirmative defense or any other portion of the amended answer.

Plaintiff's demurrer to the **tenth affirmative defense** is **overruled**. To the extent the affirmative defense is defective, the Court interprets the affirmative defense as giving Plaintiff sufficient notice of Defendant's intent to reserve the ability to assert other affirmative defenses in the future and to seek leave to amend to plead those additional affirmative defenses that may be disclosed based on further investigation of Plaintiff's case. (See *Harris, supra*, 56 Cal. 4th at 240; Opp. to Dem. p. 5, ll. 5-8.) Defendant concedes the need for leave to amend if it proposes to assert additional affirmative defenses, consistent with the statutes and case law that would otherwise result in waiver. (*Id.*) The Court does not interpret the tenth affirmative defense as seeking to bypass the leave to amend process.

Motion to Strike

Plaintiff moves to strike paragraph 2 of the prayer for relief of the Amended Answer which prays for "[a]ttorneys' fees and costs of suit incurred herein." Plaintiff cites no authority and makes no argument that the claim for costs of suit is improper, as a prevailing party is generally entitled to recover its costs from the losing party as a matter of right. (Code Civ. Proc. § 1032.)

As to the prayer for attorneys' fees, Defendant cites Government Code section 12965(c)(6), which is part of the Fair Employment and Housing Act, Government Code section 12900 *et seq.* ("FEHA"), and which allows an award of attorneys' fees for a defendant in a FEHA action if the lawsuit is found to be "frivolous, unreasonable, or without foundation." (Govt. Code § 12965(c)(6).) Plaintiff has alleged FEHA violations in her eighth through twelfth causes of action of the complaint. The motion to strike is **denied**.

Caution on CACI Instructions Cited

Defendant cites several CACI instructions in its opposition. CACI jury instructions are not themselves legal authority. "Although official jury instructions adopted by the Judicial Council are entitled to some weight (*see* Cal. Rules of Court, rule 2.1050), they are not authoritative. '[J]ury instructions, whether published or not, are not themselves the law, and are not authority to establish legal propositions or precedent. . . .' [Citations, internal quotation marks omitted.]" (*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 179, fn. 17.)

**Law & Motion
Add-On 2**

19. 9:00 AM CASE NUMBER: C23-00304

CASE NAME: RICHARD SMITH VS. MARK DWELLEY

***HEARING ON MOTION IN RE: APP FOR RELIEF FROM WAIVER OF OBJECTIONS AND RELIEF FROM COURT'S 1/24/25 RULING SET PER EX PARTE FILED 2/14/25**

FILED BY:

TENTATIVE RULING:

Granted. The court grants Defendant Dwelley Family Farms motion for relief from waiver of its objections to Plaintiff's Request for Production of Documents, Set Three based upon mistake of counsel.

20. 9:00 AM CASE NUMBER: C23-00304

CASE NAME: RICHARD SMITH VS. MARK DWELLEY

***HEARING ON MOTION IN RE: APP FOR PROTECTIVE ORDER RE CONFIDENTIALITY SET PER EX PARTE FILED 2/14/25**

FILED BY:

TENTATIVE RULING:

Moot. Parties reached a mutually agreeable stipulation on the issuance of a protective order.

**Law & Motion
Add-On 3**

15. 9:00 AM CASE NUMBER: MSC17-02330

CASE NAME: CHEKENE VS BOWERS

*HEARING ON MOTION IN RE: ATTORNEY FEES

FILED BY: BOWERS, DAMON

TENTATIVE RULING:

See line 13.